

former place; but attention to the context clearly proves that the expression merely means that he was made chief justice in the commission of assizes in Sussex, in the place of H. Green, who had been sent on some other service; as we should now say, the senior judge of assize.

Whether the baron of the Exchequer were the same or a different person, he was present among the judges in the parliament of 28 and 29 Edward III.¹, but not later.

Within a few years three William de Thorpes are mentioned; in Nottingham, Northampton, and Sussex²; but we cannot satisfactorily identify either with the judge.

TOUTHEBY, GILBERT DE.

JUST. ITIN. 1329.

See under the Reign of Edward II.

GILBERT DE TOUTHEBY was an advocate of considerable eminence. His name frequently appears in the Year Books among the counsel during the reign of Edward II., and in the first two years of Edward III.; often abbreviated "Toud." In 9 Edward II. he was employed in prosecuting and defending the king's suits, and had a grant, with three others, of 20*l.* for his expences therein, being at that time a king's serjeant-at-law. The next year he was summoned among the legal assistants to parliament; and so continued to be during the remainder of the reign. He is first mentioned in a judicial capacity, as one of the justices appointed in Lincolnshire in March, 1318, 11 Edward II., and most of his future commissions were in that county. It is evident that these occasional employments as a judge did not prevent his pursuing his profession as an advocate; for we not only find him engaged in cases as a serjeant-at-law in 14 Edward II., but on the accession of Edward III. his stipend for prosecuting and

¹ Rot. Parl. ii. 254. 267.

² N. Fœdera, iii. 221. 457. 464.